

Shree Pal v. State of U.P.

Allahabad High Court · Division Bench · 24 March 2023 · WRIT - C No. - 21520 of 2021 · **Writ disposed of; Clause 4.3 application to be considered in accordance with law.**

HEADNOTE

A tenant whose electricity connection was disconnected at the landlord's instance after the tenancy expired sought certiorari against the disconnection-related orders. Without entering the merits, and on the petitioner's agreement and the licensee's non-objection, the High Court disposed of the writ by directing that if the petitioner applied for a new connection under Clause 4.3 of the U.P. Electricity Supply Code, 2005 within two weeks, the application be considered and decided within six weeks in accordance with law.

FACTUAL SUMMARY

The petitioner had a separate electricity connection as a tenant. The tenancy agreement was for two years. When it expired, the landlord asked the electricity department to disconnect the petitioner's supply, and the department did so. The petitioner sought certiorari quashing orders dated 23 February 2021 and 25 November 2019. Counsel accepted there was a landlord-tenant dispute and had no objection to seeking a fresh connection under Clause 4.3 of the Supply Code. The electricity department did not object.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

new connection after tenant disconnection

HOLDING

Without adverting to the merits of the disconnection or the landlord-tenant dispute, the Court disposed of the writ by directing that if the petitioner applied for a new electricity connection under Clause 4.3 of the U.P. Electricity Supply Code, 2005 within two weeks, the application shall be considered and decided within six weeks in accordance with law.

¶ 1

PRINCIPLE TAGS

clauses-4.1-4.3-4.4-licensee-obliged-to-consider-and-grant-new-connection-speedily-if-no-impediment On the petitioner's agreement and the licensee's non-objection, the Court, without deciding the disconnection challenge, directed that a Clause 4.3 application for a new connection, if made within two weeks, be considered and decided within six weeks in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LAWFULNESS OF THE DISCONNECTION AT THE LANDLORD'S INSTANCE AFTER THE TENANCY EXPIRED

The Court expressly declined to advert to the merits. ¶ 1

NOT DECIDED — QUASHING OF THE ORDERS DATED 23.02.2021 AND 25.11.2019

Certiorari was sought; the writ was disposed of without deciding those challenges. ¶ 1